

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Magistrate Judge Michael J. Watanabe

Civil Action No: 15-cv-01795-MJW-STV
Courtroom Deputy: Stacy Libid

Date: September 25, 2017
Court Reporter: Janet Coppock

Parties:

ANGUS JOHN FORBES,

Plaintiff,

v.

MICHAEL DONNELLON and
A. SANDOVAL,

Defendants.

Counsel:

Douglas Pooley

Christopher Soper
Heidi Miller

COURTROOM MINUTES

JURY TRIAL – DAY ONE

8:17 a.m. Court in session.

Court calls case. Appearances of counsel. Also present paralegal Kelly Vis.

Discussion regarding jury list, witness list, exhibit list, stipulation of exhibits, factual stipulation, order of sequestration, and other preliminary matters. Parties are allowed 20 minutes for voir dire per side, and 15 minutes for opening statements per side.

ORDERED: Plaintiff's Exhibits 4, 7, 8, 25, 25A, and 28 are admitted by stipulation of the parties. Plaintiff's exhibits 1, 2, 3, 5, 6, 9, 10, 11, 12, 13, 14, 15, 17, 20, 21, 22, 23, 24, 26, 27 and Defendant's Exhibits A, B, and C are stipulated by the parties for authentication only.

8:30 a.m. Court in recess.

8:57 a.m. Court in session.

8:57 a.m. Jurors present. Fourteen jurors called to the jury box.

Court's preliminary remarks and introduction of counsel, parties, and staff.

9:03 a.m. Statement by the Court.

9:07 a.m. All jurors sworn for voir dire.

9:08 a.m. Court voir dire of jurors.

9:57 a.m. Plaintiff's oral motion challenging juror 100367353 as a prospective juror for cause is GRANTED. Juror 100367353 is excused for cause.

10:10 a.m. Plaintiff's oral motion challenging juror 100356558 as a prospective juror for cause is DENIED.

10:24 a.m. to 10:25 a.m. **Bench conference:** Plaintiff's renewal oral motion challenging juror 100356558 as a prospective juror for cause is GRANTED. Juror 100356558 is excused for cause.

10:25 a.m. Plaintiff's voir dire and Defendants' voir dire continues.

Court excuses jurors for cause:

100356558
100367353

Plaintiff's peremptory challenges:

100359399
100362119
100368384

Defendants' peremptory challenges:

100353050
100353872
100360996

10:38 a.m. Eight jurors selected to try the case:

100361171
100343327
100351430
100353131
100333602
100336617
100373931
100329889

10:39 a.m. Jurors not selected are excused.

10:40 a.m. Jury of eight panel sworn to try case.

Discussion regarding preliminary jury instruction.

11:00 a.m. Court in recess.

11:15 a.m. Court in session.

11:16 a.m. Jury present.

11:17 a.m. Plaintiff's opening statement by Mr. Poole.

11:27 a.m. Defendants' opening statement by Mr. Soper.

11:38 a.m. Court reads the factual stipulation and exhibit stipulation to Jury.

11:42 a.m. Jury excused for lunch.

ORDERED: Parties, counsel, and jury to return at 1:00 p.m.

11:44 a.m. Court in recess.

12:59 p.m. Court in session.

1:02 p.m. Jurors present.

Plaintiff, Angus John Forbes, sworn.

1:03 p.m. Direct examination of Mr. Forbes by Mr. Poole.

Plaintiff's Exhibits 1, 2, 6, 9, 10, 11, 12, 13, 14, and 15 are admitted.

Plaintiff's Exhibit 4, 5, 21, and 23 are referenced.

2:22 p.m. Court in recess

2:41 p.m. Court in session

2:43 p.m. Jurors present.

2:43 p.m. Cross examination of Mr. Forbes by Mr. Soper.

2:49 p.m. Deposition of Mr. Forbes opened in Court and handled to Mr. Forbes.

Plaintiff's Exhibits 21-1 and 23-6 are referenced.

3:08 p.m. Redirect examination of Mr. Forbes by Mr. Pooley.

Plaintiff's Exhibits 21-1 and 23-6 are referenced.

Plaintiff, Mr. Forbes, excused.

Plaintiff's witness, Alec Gentry, sworn.

3:20 p.m. Direct examination of Mr. Gentry by Mr. Pooley.

3:30 p.m. Cross examination of Mr. Gentry by Mr. Soper.

3:32 p.m. Redirect examination of Mr. Gentry by Mr. Pooley.

Plaintiff's witness, Mr. Gentry, excused.

Plaintiff's witness, Michelle Forbes, sworn.

3:34 p.m. Direct examination of Ms. Forbes by Mr. Pooley.

Plaintiff's Exhibit 5 is admitted.

Plaintiff's Exhibit 6-1 and 13 are referenced.

4:02 p.m. Cross examination of Ms. Forbes by Mr. Soper.

4:06 p.m. Redirect examination of Ms. Forbes by Mr. Pooley.

Plaintiff's witness, Ms. Forbes, is excused.

Court instructs jurors. Jury excused until September 26, 2017 at 8:30 a.m.

4:17 p.m. Court in recess.

Hearing continued.

Total in-court time 05:44